

STATE OF NEW YORK

3180--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. KELLES, LEVENBERG, SIMON, COLTON, PAULIN, SEAWRIGHT, K. BROWN, SIMONE, STECK, BORES, STERN, LUNSFORD, ROZIC, BARRETT, STIRPE, BURDICK, OTIS, ROSENTHAL, RAJKUMAR, LUPARDO, McMAHON, DINOWITZ, SAYEGH, RAGA, HUNTER, JACOBSON, SHRESTHA, R. CARROLL, SLATER, FORREST, WOERNER, BICHOTTE HERMELYN, WALKER, CONRAD, GANDOLFO, JENSEN, MITAYNES, BRONSON, DeSTEFANO, RA, LAVINE, PHEFFER AMATO, TAPIA, SMITH -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public buildings law, in relation to directing the commissioner of general services to incorporate practices and strategies to reduce bird fatality resulting from collisions with certain state-owned buildings, and for other purposes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "bird safe buildings act".

3 § 2. The public buildings law is amended by adding a new section 148
4 to read as follows:

5 § 148. Use of bird-safe features, practices, and strategies in state-
6 owned buildings. 1. As used in this section:

7 (a) "state agency" means any state department, office, board, bureau,
8 commission, agency, or any public authority or public benefit corpo-
9 ration at least one of whose members is appointed by the governor;

10 (b) "state-owned building" means any building owned by a state agency
11 used for official state business; and

12 (c) "state-leased building" means any building or portion of any
13 building leased by a state agency for office, departmental, or residen-
14 tial occupancy.

15 2. The commissioner of general services shall incorporate features,
16 practices, and strategies to reduce bird fatality resulting from colli-
17 sions with state-owned buildings and, where practicable, state-leased

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 buildings. Such features, practices and strategies shall be incorpo-
2 rated for each building:

- 3 (a) constructed;
- 4 (b) acquired; or
- 5 (c) of which more than fifty percent of the facade is substantially
6 altered, as determined by the commissioner.

7 3. The commissioner, in consultation with the department of environ-
8 mental conservation, shall develop a design guide to carry out the
9 provisions of subdivision two of this section that includes the follow-
10 ing:

11 (a) features for reducing bird fatality resulting from collisions with
12 state-owned buildings and, where practicable, state-leased buildings,
13 throughout all construction phases, taking into account the number of
14 each such bird fatality that occurs at different types of state-owned
15 buildings and, where practicable, state-leased buildings;

16 (b) methods and strategies for reducing bird fatality resulting from
17 collisions with state-owned buildings and, where practicable, state-
18 leased buildings, during the operation and maintenance of such build-
19 ings;

20 (c) best practices for reducing bird fatality resulting from colli-
21 sions with state-owned buildings and, where practicable, state-leased
22 buildings, including but not limited to:

23 (i) eliminating non-essential lighting during spring and fall
24 migration;

25 (ii) use of bird-safe film or other after-market products designed to
26 reduce bird collisions;

27 (iii) architectural or design elements that reduce the risk of colli-
28 sions;

29 (iv) use of bird-friendly glass in new construction or renovations
30 that require substantial alterations; and

31 (v) placement of landscaping features and green roofs; and
32 (d) information on how to participate in citizen science efforts that
33 document bird collisions in New York state.

34 4. To carry out the provisions of paragraph (c) of subdivision three
35 of this section, the commissioner shall identify best practices for
36 reducing bird fatality resulting from collisions with state-owned build-
37 ings and, where practicable, state-leased buildings, including best
38 practices recommended by:

39 (a) state, federal, and municipal agencies with expertise in bird
40 conservation;

41 (b) nongovernmental organizations with expertise in bird conservation;
42 and

43 (c) representatives of green building certification systems.

44 5. The commissioner shall disseminate the design guide developed
45 pursuant to subdivision three of this section to all state agencies with
46 independent leasing authority from the commissioner.

47 6. The commissioner shall, every five years, update the design guide
48 developed pursuant to subdivision three of this section with respect to
49 the priorities of the commissioner for reducing bird fatality resulting
50 from collisions with state-owned buildings and, where practicable,
51 state-leased buildings.

52 7. This section shall not apply to any building or site listed, or
53 eligible for listing, on the National Register of Historic Places.

54 § 3. This act shall take effect immediately.